

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT’S OPPOSITION TO RESPONDENT’S REQUEST FOR EXTENSION
OF TIME**

Complainant FormuKleen, Inc., by and through its representative, submits this Opposition to Respondent Top Shipping Systems Corp.’s request for twenty-one additional days to supplement its response to Complainant’s Motion to Enforce the April 1, 2026 Order as to Requests for Production Nos. 4 and 7 and for Sanctions, presented in Respondent’s May 18 *Respondent’s Response to Complainant’s Motion to Enforce and Request for Extension of Time*. Respondent’s request should be denied.

This is not Respondent’s first attempt to use counsel withdrawal as a shield against discovery consequences. Prior counsel withdrew when a Motion to Compel filed by Complainant was granted and when Respondent was required to address declaration and search issues by the Presiding Officer. Current counsel then withdrew after Complainant filed the pending Motion to Enforce, when Respondent’s production, redactions, Bates-range failures, and search methodology were placed directly before the Presiding Officer. This is not coincidence. It is a pattern.

Respondent already filed its response. It defended its production. It defended its search methodology. It defended its redactions. It refused to identify Bates ranges. It asked the Presiding Officer to deny sanctions. Now Respondent wants to keep that response on file while reserving the right to improve it later if replacement counsel decides Respondent's first attempt was inadequate. That is not good cause. It is a do-over request.

The timing is not good cause. It is the problem.

I. Respondent Already Filed Its Response

Respondent did not file a motion for extension before its response was due. It filed a document titled "*Respondent's Response to Complainant's Motion to Enforce and Request for Extension of Time.*" Then it responded on the merits.

Respondent addressed RFP Nos. 4 and 7. It addressed third-party communications. It addressed its search methodology. It addressed the third-party entities identified in Complainant's motion. It addressed RX1093 and RX1095-RX1096. It addressed the payment-related redactions. It asked the Presiding Officer to deny sanctions.

That is a response. It is on the record.

Respondent does not get to file a substantive opposition, ask the Presiding Officer to deny sanctions, and then hold the record open for twenty-one days so new counsel can attempt to clean up the damage. That is not motion practice. That is sandbagging.

Respondent chose to respond. Respondent is bound by the response it filed.

II. Respondent Is Repackaging the Same Delay Request the Presiding Officer Already Denied

On May 14, 2026, the Presiding Officer granted Respondent's counsel leave to withdraw but denied the Motion to Withdraw to the extent it sought an extension or stay of pending deadlines. The Presiding Officer recognized that the withdrawal motion was "obliquely asking to stay or extend upcoming deadlines" and found no good cause to do so. Respondent is now asking again.

The label changed. The request did not.

Respondent now says it is pro se, seeking replacement counsel, a small business, and not composed of attorneys or legal experts. That is the same counsel-withdrawal excuse dressed up as a hardship narrative. Commission Rule 502.23(d) expressly provides that substitution of counsel or representative will not, by itself, be considered good cause for delaying a proceeding. Respondent cannot evade that rule by rebranding counsel withdrawal as "pro se status" or "small business" disadvantage.

The Presiding Officer also stated that, at this stage of the litigation, he would be disinclined to grant further deadline extensions absent good cause, and specifically noted concern that Respondent has been "squandering its time."

Respondent offers no new good cause. It offers only the same delay tactic in a different costume.

The request should be denied.

III. Respondent Was Represented During the Discovery Conduct at Issue

Respondent's pro se and small-business story is irrelevant to the discovery issue before the Presiding Officer.

The discovery conduct at issue did not occur while Respondent was without counsel. Respondent was represented when the April 1 Order issued. Respondent was represented when it made the production now challenged. Respondent was represented when it submitted the declaration describing its searches. Respondent was represented when Complainant identified the deficiencies. Respondent was represented when Complainant filed the Motion to Enforce. Respondent was represented when the Motion to Enforce was served.

The problem is not that Respondent lacks counsel now. The problem is what Respondent did while it had counsel.

Indeed, the declaration and search-compliance issues were already being handled through Respondent's prior counsel, who represented that Respondent would submit materials addressing those issues. Respondent cannot now recast those same issues as new or unmanageable simply because it is temporarily without counsel, again.

Respondent cannot litigate for nearly a year, fail to comply with a discovery order, lose counsel after enforcement is sought, and then ask to be treated as if the case just started. Counsel withdrawal does not erase the record. It does not reset Respondent's obligations. It does not reopen discovery. It does not excuse deficient searches, improper redactions, or refusal to identify allegedly responsive documents. Respondent created this record. Respondent must live with it.

IV. Successive Counsel Withdrawals at Critical Discovery Moments Are Not Good Cause

Respondent's current request must be viewed in context. This is not a single isolated counsel change occurring in a quiet case.

Prior counsel withdrew when a Motion to Compel filed by Complainant was granted and when Respondent was required to address declaration and search issues ordered by the Presiding Officer. Current counsel then withdrew after Complainant filed the pending Motion to Enforce, which places Respondent's production, redactions, search methodology, Bates-range failures, and compliance with the April 1 Order directly before the Presiding Officer. Respondent now asks for twenty-one more days because it is again without counsel.

Successive counsel withdrawals at critical discovery-enforcement moments do not entitle Respondent to serial extensions. They heighten the need to enforce deadlines, not relax them. Respondent should not be rewarded for arriving at each important discovery deadline with a new excuse for why compliance must wait.

If Respondent's own relationship with counsel has repeatedly become unworkable when discovery enforcement is ordered and decided, that is Respondent's problem. It is not good cause to delay Complainant's enforcement motion, delay compelled production, delay in camera review, delay Bates-range identification, or push the case past the discovery cutoff.

V. Respondent's Filing Confirms Noncompliance

Respondent's response does not cure the Motion to Enforce. It proves why enforcement is necessary.

A. Bates Ranges

Respondent states it is “under no obligation” to identify Bates ranges for the compelled third-party communications. That is not a defense. It is an admission of the problem.

If Respondent actually produced the compelled communications, identifying them would take minutes. Instead, Respondent refuses. Respondent wants credit for production while preventing Complainant and the Presiding Officer from verifying where the allegedly responsive documents are. Respondent cannot say “we produced it” and then refuse to say where. That is not compliance. That is evasion.

B. Search Methodology

Respondent argues that searching by third-party name would return “hundreds if not thousands” of unrelated emails. That argument proves the defect.

The issue is not whether a lazy search using only a third-party name might return irrelevant material. The issue is whether Respondent performed competent targeted searches using combinations of third-party names, FormuKleen, container numbers, booking numbers, bill of lading numbers, invoice numbers, master shipment numbers, and other shipment-specific identifiers. Respondent’s response still does not show that it did.

“Inconvenient” does not mean “not required.” A high volume of potentially responsive records is not an excuse to avoid reasonable search methodology. It is the reason competent search methodology exists.

C. Redactions

Respondent's defense of RX1093 and RX1095-RX1096 is that "FormuKleen may not believe TSS, but that is the truth." That is not evidence. That is not compliance. That is not a legal standard.

Respondent made the redactions. Respondent's compliance is being challenged. Respondent does not get to be the final judge of its own withholding. The Presiding Officer should not accept "trust us" as a substitute for in camera review or unredacted production subject to the Protective Order.

D. Payment Records

Respondent claims that visible fields give Complainant enough context to understand the redacted payment records. That misses the point.

The issue is not whether Respondent left some words visible. The issue is whether Respondent redacted the information necessary to determine the customer, shipment, transaction, charge, payment, and relationship to FormuKleen. If Complainant cannot test Respondent's assertion that the material is unrelated, Respondent's explanation is worthless.

Respondent cannot redact the information necessary to determine responsiveness and then demand that its conclusion be accepted. That is exactly why in camera review exists.

VI. Respondent's "Small Business" Story Does Not Create Good Cause

Respondent asks for sympathy because it is a small business, is currently pro se, and is not composed of attorneys or legal experts. That story has nothing to do with whether

Respondent complied with the April 1 Order. A corporation that litigates before the Commission must comply with Commission orders. Respondent does not get a lesser standard because its latest filing is signed by its Vice President instead of counsel.

The Presiding Officer already observed that this case has been pending almost eleven months and that Respondent appears to have been squandering its time. Respondent's latest filing confirms that concern. Respondent is still not producing. Still not identifying. Still not submitting redactions for review. Still not curing. Still asking for more time. That does not establish good cause.

VII. Granting the Extension Would Reward the Conduct at Issue

Discovery closes May 22, 2026. Complainant's Motion to Enforce concerns Respondent's compliance with an April 1 discovery order. The compelled RFP No. 4 and RFP No. 7 materials go directly to the central issue in this proceeding: what TSS actually did regarding the subject shipments, routing, storage, third-party communications, charges, payments, and related services. Complainant needs those materials to proceed on a complete record, including for renewed dispositive motion practice.

Respondent's requested twenty-one-day extension would push enforcement beyond the discovery cutoff, delay compelled production, delay in camera review, delay Bates-range identification, and reward Respondent for failing to comply before counsel withdrew.

Respondent should not be allowed to withhold or obscure compelled discovery, file a substantive response, ask that sanctions be denied, and then demand twenty-one more days to improve its position. That is prejudice.

Respondent's renewed delay request also reinforces, rather than weakens, Complainant's pending request for sanctions and adverse-inference relief. Respondent is not merely late. Respondent has repeatedly failed to provide a complete record, resisted verification of its production, defended redactions by asking to be believed on faith, and now seeks more time after filing a response. The record supports escalation, not indulgence.

VIII. Respondent Should Not Receive Advance Permission to Supplement

Respondent asks to retain counsel and "supplement this response if necessary." Respondent has taken its positions. Those positions are before the Presiding Officer.

Respondent says it produced responsive documents. Respondent says it has no obligation to identify Bates ranges. Respondent says its searches were adequate. Respondent says its redactions are proper. Respondent says sanctions should be denied.

If Respondent later retains counsel, new counsel can appear and proceed from the existing record. What Respondent may not do is reserve a conditional right to rewrite its response if new counsel later decides the first attempt was inadequate.

The existing response should stand unless Respondent obtains leave on a proper showing unrelated to counsel withdrawal.

IX. Relief Requested

Complainant respectfully requests that the Presiding Officer:

1. Deny Respondent's request for an extension of time;
2. Decide Complainant's Motion to Enforce on the existing record;

3. Order that Respondent may not supplement, revise, or refile its response absent leave and a specific showing of good cause unrelated to counsel withdrawal, substitution, pro se status, small-business status, or dissatisfaction with its existing response; and
4. Grant such other relief as the Presiding Officer deems just and proper.

Respectfully submitted,

Sara Dandan

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Signature:  _____

Date: 05/19/2026

CERTIFICATE OF SERVICE

I certify that on May 19, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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